



Dhaka International University

Assignment details:

Assignment Topic : A note on constitution and human rights in Bangladesh

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❖ Introduction

The Constitution of Bangladesh, adopted in 1972, represents an inclusive legal and political arrangement for upholding democracy, human dignity, and equality. Fundamental and human rights are core components of the Constitution, meant to guarantee a just and equitable society. The present assignment is based on constitutional provisions about human rights, their implementation, and related challenges.

❖ Fundamental Rights under the Constitution of Bangladesh

Part III of the Constitution (Articles 26-47A) guarantees fundamental rights to all citizens, with a mechanism for judicial enforcement. These rights are designed to ensure justice, liberty, and equality.

Key Rights Include:

1. Right to Equality (Articles 27-29): Guarantees equal treatment under the law and prohibits discrimination based on religion, race, caste, sex, or birthplace.
2. Right to Protection of Law (Article 31): Ensures legal protection for all individuals.
3. Right to Life and Personal Liberty (Article 32): Prohibits illegal deprivation of life or liberty.
4. Freedom of Speech and Expression (Articles 37-39): Provides for freedom of speech, peaceful assembly, and association.
5. Freedom of Religion (Article 41): Guarantees freedom to practice, profess, and propagate religion.
6. Right to Education (Article 17): Provides for free and compulsory primary education.

❖ Enforcement of Rights

The judiciary is the vital guardian of fundamental rights. Article 44 states that a citizen can move the High Court Division for writs such as:

1. Habeas Corpus: To question illegal detention.
2. Mandamus: To force public officials to perform lawful duties.
3. Prohibition and Certiorari: To rectify defects of procedure or jurisdictional error in a judicial decision

❖ Human Rights in Bangladesh

Bangladesh's commitment to human rights extends beyond its Constitution to international treaties, including the ICCPR, ICESCR, and CEDAW.

National Human Rights Commission (NHRC):

Established to promote and protect human rights, the NHRC investigates violations, raises awareness, and advises on policy improvements.

❖ Challenges and Criticisms

Despite its constitutional guarantees, Bangladesh faces significant challenges in ensuring human rights:

- **Political Repression:** Restrictions on free speech and press freedom undermine democratic principles.
- **Extrajudicial Killings and Disappearances:** Gaps in law enforcement and accountability continue to persist.
- **Gender and Economic Disparities:** Prevalent discrimination impacts marginalised groups.

❖ Discussion

The Constitution of Bangladesh is an important tool in protecting human rights. The basis for this is international standards. The constitutional provisions of equality, freedom, and justice share common values with those of democracy. In the way these guarantees are constitutionally given, there exists a gap in reality.

Strong Points of the Constitution:

- **Alignment with International Norms:** The fact that it contains rights like freedom of speech and religion testifies to the adherence to global standards of human rights in Bangladesh.
- **Judicial Safeguards:** The ability to seek judicial redress against a violation ensures accountability.

Limitations in Practice:

While the Constitution promises effective theoretical protection, real challenges in practice persist:

1. **Political Will and Governance:** Political interference into the judiciary and administration leads to an inability to enforce the rights.
2. **Corruption and Accountability:** Corruption in the ranks of law enforcement agencies limits the realization of justice.
3. **Social Inequalities:** Structural barriers maintain economic, gender-based, and minority group disparities.

Role of Civil Society and Media:

Civil society organizations and media play a very important role in advocating for human rights and holding institutions accountable. Their efforts help bridge the gap between constitutional ideals and their application.

Moving Forward:

Strengthening the independence of judicial institutions, promoting public awareness of rights, and ensuring adherence to international treaties are vital for a culture of human rights. Efforts must also be directed to address socio-economic disparities in ensuring access to justice.

❖ Recommendations for Strengthening Human Rights

- Empower independent functioning of institutions like NHRC.
- Education campaigns should be implemented in order to spread awareness about constitutional rights.
- Reform law enforcement agencies for greater accountability.
- Pursue equality by targeting systemic barriers through policies and programs.

❖ Conclusion

The Constitution of Bangladesh thus provides a strong framework for the protection of fundamental and human rights. In practice, however, formidable challenges persist in the implementation of those rights. Success requires that the government, judiciary, civil society, and citizens work in concert to transform Constitutional ideals into tangible gains for all.